

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/23/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:
Parties to appear.

2. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: VEG SAN RAMON, LLC,
TENTATIVE RULING:

Plaintiff Robin Fernandez brought this action against VEG San Ramon LLC DBA Veterinary Emergency Group San Ramon and Tyra Eggert for (1) veterinary professional negligence, (2) intentional infliction of emotional distress, (3) fraud and deceit, (4) conversion (trespass to chattels), (5) violation of consumer legal remedies act, and (6) unfair business practices. She seeks economic, emotional distress, punitive, exemplary, and compensatory damages, as well as restitution, injunctive relief, attorneys' fees, and the peculiar economic value of her deceased pet. Defendants demurred to the Second through Sixth Causes of Action in Plaintiff's complaint. Defendants were unable to meet and confer with Plaintiff despite efforts to do so, and approximately one month after the filing of this Motion, Plaintiff's counsel filed a request to be relieved as counsel—that hearing is set for May 14, 2026. The Court received no opposition to this Demurrer, but did receive a notice that current Plaintiff's counsel will be appearing remotely.

Analysis

"In reviewing the legal sufficiency of a demurrer, we are not concerned with plaintiff's ability to prove the allegations of the complaint, or the possible difficulties in making such proof. Neither are we bound by the trial court's construction of the pleadings; instead, we exercise our independent judgment in determining whether the complaint states a cause of action." (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.)

Second Cause of Action – Intentional Infliction of Emotional Distress

The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) Additionally, "[i]t must be conduct *directed at the plaintiff*, or occur in the presence of the plaintiff *of whom the defendant is aware*." [Citation.] "The requirement that the defendant's conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotional distress from the negligent infliction of such injury." (*Id.* at p. 1002.) Defendants argue that their actions were not directed at Plaintiff, thereby defeating the IIED claim. The requirement, however, is only that the actions have been done in her presence. That is alleged here.

Plaintiffs does not, however satisfy the requirement of pleading an intentional act that rose to "extreme and outrageous conduct." Beyond a conclusory statement that "Defendants' conduct went beyond mere negligence and constituted a reckless disregard for the probability of causing Plaintiff severe emotional distress," there is no explanation of how this conduct rises above professional negligence. The allegations state, at most, that Defendants failed to perform confirmatory tests and mistakenly diagnosed Jackson (the cat) with an untreatable condition. This is the gravamen of professional negligence. Defendants' demurrer to the Second Cause of Action is **sustained**.

Third Cause of Action – Fraud and Deceit

The essential elements of fraud that give rise to a cause of action for deceit or intentional misrepresentation are: (a) misrepresentation (false representation, concealment, or nondisclosure);

(b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) actual and justifiable reliance; and (e) resulting damage. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.) Defendants aver that there was no misrepresentation of Jackson’s test results. Plaintiff claims that Dr. Eggert relied on the more concerning test results, but never alleges that the less concerning test results were concealed. Absent this allegation, there is insufficient support for the Third Cause of Action. (See also *Stone v. Foster* (1980) 106 Cal.App.3d 334, 346 (“Defendant’s representations as to the result of the operation do not support a claim of fraud. Fraud is an intentional tort.”).) The demurrer to this cause of action is therefore **sustained**.

Fourth Cause of Action – Conversion (Trespass to Chattel)

The essential elements of conversion are: (1) the plaintiff owned or had the right to possess the personal property; (2) the defendant disposed of the property in a manner inconsistent with the plaintiff’s property rights; and (3) resulting damages. (*Voris v. Lampert* (2019) 7 Cal.5th 1141, 1150–1151.) The defendant’s conduct “must be knowingly or intentionally done,” but a “*wrongful intent*” or motive is not a requirement. (*Taylor v. Forte Hotels International* (1991) 235 Cal.App.3d 1119, 1124.) Defendant argues that because Plaintiff consented to the euthanasia, and there is no allegation that Defendants “acted without authorization or forced Plaintiff to consent,” this claim cannot lie. The Court does not see support for this proposition in the cases cited by Defendant. For the same reason that the fraud claim contains no allegations of intentional misbehavior, however, this claim also fails. (*Cf. Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1272.) The demurrer to this cause of action is therefore **sustained**.

Fifth Cause of Action – Violation of Consumer Legal Remedies Act (Civ. Code § 1750)

The source of Plaintiff’s Fifth Cause of Action is somewhat vague. She alleges: “Defendants violated § 1770(a) by: (a) representing the characteristics, uses, or benefits of their veterinary services that they did not have (§ 1770(a)(5)); and (b) representing that services were of a particular standard or quality when they were of another (§ 1770(a)(7)). Plaintiff does not allege § 1770(a)(9) absent specific advertising allegations and reserves that subsection pending discovery.” Plaintiff does not, however, allege what was missing from the Defendants’ representations. The demurrer to this cause of action is therefore **sustained**.

Sixth Cause of Action – Unfair Business Practices (Bus. & Prof. Code § 17200)

Plaintiff’s final cause of action for unfair competition law (UCL) violation is similarly unclear. She alleges that the conduct violated several unexplained statutes, and therefore is additionally unlawful pursuant to Business and Professions Code section 17200. She fails to explain how one-to-one alleged professional negligence constitutes fraudulent business practice toward the public, or how it is “immoral, unethical, oppressive, unscrupulous, and substantially injurious to consumers.” The demurrer to this cause of action is therefore **sustained**.

Ruling

In light of the foregoing, the demurrer to the Second through Sixth Causes of Action is sustained. The Court will grant leave to amend. Plaintiff must amend within fifteen days of the ruling on the pending

Motion to Be Relieved as Counsel.

3. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court **continues** the case management conference to April 30, 2026.

4. 9:05 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
***HEARING ON MOTION IN RE: STRIKE PLTFS COMPLAINT**
FILED BY: VEG SAN RAMON, LLC,
TENTATIVE RULING:

Plaintiff Robin Fernandez brought this action against VEG San Ramon LLC DBA Veterinary Emergency Group San Ramon and Tyra Eggert for (1) veterinary professional negligence, (2) intentional infliction of emotional distress, (3) fraud and deceit, (4) conversion (trespass to chattels), (5) violation of consumer legal remedies act, and (6) unfair business practices. She seeks economic, emotional distress, punitive, exemplary, and compensatory damages, as well as restitution, injunctive relief, attorneys' fees, and the peculiar economic value of her deceased pet. By this motion, Defendants seek to strike from Plaintiff's complaint the requests for emotional distress, punitive, exemplary, and compensatory damages (as to the Sixth Cause of Action), as well as restitution, injunctive relief and the peculiar economic value of the pet. Defendants were unable to meet and confer with Plaintiff despite efforts to do so, and approximately one month after the filing of this Motion, Plaintiff's counsel filed a request to be relieved as counsel—that hearing is set for May 14, 2026. The Court received no opposition to this Motion, but did receive a notice that current Plaintiff's counsel will be appearing remotely.

Analysis

Emotional Distress Damages

Plaintiff cannot recover emotional distress damages for veterinary malpractice. (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1514-1515.) There is nothing in the complaint supporting any extension of these tort damages to this matter. This claim will therefore be stricken.

Punitive Damages

A claim for punitive damages must be supported by specific factual allegations. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Civil Code section 3294, subdivision (a) provides: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Plaintiff has included no allegations of oppressive, fraudulent, or malicious conduct. This